

HOUSE No. 5622

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 30, 2026.

The committee on Ways and Means, to whom was referred the Senate Bill updating the Move Over Law (Senate, No. 2653), reports recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text contained in House document numbered 5622.

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

By striking out all after the enacting clause and inserting in place thereof the following:—

1 SECTION 1. Section 7C of chapter 89 of the General Laws, as appearing in the 2024
2 Official Edition, is hereby amended by striking out, in line 8 and in lines 10 and 11, the words
3 “executive office of transportation and public works” and inserting in place thereof, in each
4 instance, the following words:- Massachusetts Department of Transportation.

5 SECTION 2. Said section 7C of said chapter 89, as so appearing, is hereby further
6 amended by inserting after the definition of “Recovery vehicle” the following definition:-

7 “Utility vehicle”, a vehicle being used to install, maintain, repair, operate or restore
8 communications service, electric or gas distribution or transmission service in an emergency and
9 that is operated by an employee of or a person under contract with a company incorporated for
10 the transmission of intelligence by electricity or by telephone or an electric company,
11 transmission company or distribution company, as those terms are defined in section 1 of chapter
12 164.

13 SECTION 3. Said section 7C of said chapter 89, as so appearing, is hereby further
14 amended by inserting after the word “vehicle”, in line 20, the first time it appears, and in lines 27
15 and 28, the following words:- , utility vehicle.

SECTION 4. Said section 7C of said chapter 89, as so appearing, is hereby further amended by striking out subsection (c) and inserting in place thereof the following 2 subsections:-

(c)(1) A violation of this section shall be punished by a fine of \$250 for a first offense, by a fine of \$1,000 for a second offense and by a fine of \$2,500 for a third or subsequent offense; provided, that any violation that results in injury to another person may be punished by a fine of \$5,000 or up to 1 year in a jail or house of correction.

(2) In addition to any fines pursuant to paragraph (1), an operator who commits a second or subsequent offense shall be required to complete a program selected by the registrar of motor vehicles that encourages a change in driver behavior.

(3) A first or second offense under this section shall not be a surchargeable incident under section 113B of chapter 175 or under a motor vehicle liability policy as defined in section 34A of chapter 90 that is issued pursuant to said chapter 175; provided, however, that a third or subsequent offense shall be a surchargeable incident under said section 113B of said chapter 175 or under a motor vehicle liability policy as defined in said section 34A of said chapter 90 that is issued pursuant to said chapter 175.

(d) The registrar of motor vehicles, in consultation with the highway safety division of the Massachusetts Department of Transportation, the department of state police and municipal law enforcement, shall develop and implement an annual public awareness campaign for junior and adult motor vehicle operators. The campaign shall include, but shall not be limited to, the dangers and consequences of distracted driving, information on the restrictions of mobile telephone and mobile electronic device use while operating a motor vehicle under sections 8M,

38 12A, 13 and 13B of chapter 90, information on the fines and punishments that may be imposed
39 for violations of said chapter 90 and bicycle safety. The registrar of motor vehicles shall include
40 information on the hazards of distracted driving in each revised publication of the driver's
41 manual.